

25STCV23946 25STCV23946

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-23

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Case Number: 25STCV23946 Hearing Date: July 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 23, 2026

Case Name: Doe DH v. LAUSD, et al.

Case No.: 25STCV23946

Matter: Motion to Compel Compliance

Moving Party: Plaintiff John Doe DH

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff's Motion to Compel nonparty Los Angeles County District Attorney's ("LADA") compliance with a deposition subpoena for business records is granted in part.

Under the binding authority of *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, the LADA cannot be compelled to produce investigative or police reports generated by an outside agency (here, the Hawthorne Police Department), as the prosecutor is not the legal custodian of those outside files and cannot provide the necessary statutory affidavit under Evidence Code section 1561. Furthermore, production of the remaining criminal history data, probation files, and internal records is barred by absolute attorney work product protections (Code Civ. Proc. § 2018.030) and strict statutory confidentiality provisions (Pen. Code §§ 1203.05, 13300). Accordingly, the motion is denied as to all records generated by third-party law enforcement agencies, and is granted solely to the extent that the LADA possesses its own natively generated, non-privileged administrative documents, subject to the mandatory redaction of all confidential victim and witness identifying information pursuant to Penal Code section 293.

Moving party to give notice.